

Court No. - 1

Case :- WRIT - C No. - 2218 of 2020

Petitioner :- Satpal Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vijay Shyam Bhasker

Counsel for Respondent :- C.S.C.,Abhishek Srivastava

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

As prayed, put up on 03.02.2020 as fresh.

Interim order, if any, to continue till the next date of listing.

Order Date :- 23.1.2020

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(Ajit Kumar,J.) (Ramesh Sinha,J.)

Court No. - 37

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Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Abhinava Upadhya, J.

Hon'ble Shamim Ahmed, J.

Heard Sri Bijay Shyam Bhasker for the petitioner and Sri Abhishek Srivastava for the Electricity Department.

On the allegation of electricity theft a provisional assessment was made in the year 2018. The petitioner claims that he filed his objection in 2019 much beyond the prescribed period as provided under the Electricity Supply Code. Now it appears that final assessment has been made and pursuant thereto a recovery certificate has been issued.

It is to be noted that against the final assessment the petitioner has a remedy to file appeal under Section 127 of the Electricity Act, 2003.

Since the petitioner has an efficacious remedy of appeal, we are not inclined to interfere with the writ petition.

The writ petition is, accordingly, dismissed.

Order Date :- 4.2.2020

Pkb/

(Shamim Ahmed, J.) (Abhinava Upadhya, J.)